

HOUSE BILL 2348

By Hardaway

AN ACT to amend Tennessee Code Annotated, Title 39
and Title 49, relative to threats of violence.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 39-16-517(b)(1), is amended by deleting the subdivision and substituting:

(1) A person who recklessly, by any means of communication, makes a valid and credible threat to commit an act of mass violence on school property or at a school-related activity commits a Class E felony.

SECTION 2. Tennessee Code Annotated, Section 49-6-2701(c)(7)(A), is amended by deleting the subdivision and substituting:

(A) Assessment of individuals exhibiting behavior that may present a threat to the health or safety of the individual or others. If the individual to be assessed is a student, then the procedure must include an assessment performed by a mental healthcare provider. The assessment may be performed by telehealth and must evaluate the welfare of the child. The mental healthcare provider must provide a written assessment of the student's mental health to the threat team. As used in this subdivision (c)(7)(A), "mental healthcare provider" means:

- (i) A psychiatrist;
- (ii) A physician with expertise in psychiatry as determined by training, education, or experience;
- (iii) An advanced practice registered nurse with special certification in mental health or psychiatric nursing;

- (iv) An advanced practice registered nurse with expertise in mental health or psychiatric nursing as determined by training, education, or experience;
- (v) A psychologist with health service provider designation;
- (vi) A senior psychological examiner;
- (vii) A licensed professional counselor;
- (viii) A licensed clinical social worker; or
- (ix) A school psychologist;

SECTION 3. Tennessee Code Annotated, Section 49-6-2704, is amended by deleting the language "threat of violence" wherever it appears and substituting "valid and credible threat of violence".

SECTION 4. Tennessee Code Annotated, Section 49-6-3401(g)(5), is amended by deleting the language "valid threat" wherever it appears and substituting "valid and credible threat".

SECTION 5. Tennessee Code Annotated, Section 49-6-4301(a)(3), is amended by deleting the subdivision and substituting:

(3) A director of schools or the head of a public charter school who has knowledge of a valid and credible threat of mass violence on school property or at a school-related activity pursuant to § 39-16-517 made by a student shall immediately report such action to the municipal or metropolitan police department or sheriff's department having jurisdiction. A threat of mass violence is valid and credible for purposes of this subdivision (a)(3) if such a determination is made based on the results of the threat assessment required in § 49-6-3401(g)(5).

SECTION 6. This act takes effect July 1, 2026, the public welfare requiring it.